

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' REPLY IN SUPPORT OF
DEFENDANTS' PARTIAL MOTION TO DISMISS**

Defendants Curtiss-Wright Electro-Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions (“Curtiss-Wright”), Stephanie Lanier, and Shane Sablitsky, by and through their undersigned counsel, submit this Reply in support of their motion to dismiss, pursuant to Federal Rule of Civil Procedure 12(b)(6). Plaintiff’s Response ignores many of the substantive arguments set forth in Defendants’ Partial Motion to Dismiss (ECF No. 93) (“Motion”) and instead improperly characterizes the responsive pleading as “delay tactic” that recycles arguments that the Court has “declined to adopt.” Plaintiff is mistaken. Defendants’ Motion is a proper responsive pleading under Rule 12 and asserts defenses that this Court has not had the opportunity to consider because Plaintiff has repeatedly amended her Complaint after previous responsive pleadings were filed.

For the reasons discussed further below and in Defendants’ Motion, the Court should dismiss Plaintiff’s claim under the Age Discrimination in Employment Act (“ADEA”) and her hostile work environment claim under Title VII because they are not timely filed. Similarly,

Plaintiff's Title VII claim for race and sex discrimination is untimely and should be dismissed to the extent such claims are based on Plaintiff's first two Equal Employment Opportunity Commission ("EEOC") charges. Plaintiff's Title VI claim should be dismissed because the primary purpose of Curtiss-Wright's federal funding was not to provide Plaintiff with employment. Plaintiff's state law claims for slander, tortious interference with a contract, and breach of contract also fail to state a claim for relief and should be dismissed with prejudice.

A. Defendants' Motion to Dismiss is Proper and is Not Dilatory.

Plaintiff correctly identifies that her Fourth Amended Complaint became the operative Complaint on August 27, 2025. However, she incorrectly states that Defendants are prohibited from moving to dismiss the Fourth Amended Complaint under Rule 12(g)(2) because Defendants had previously responded to previous iterations of her Complaint. As those previous iterations are no longer operative, Defendants are entitled to respond to the operative Complaint within 21 days after being served with the Summons and Complaint pursuant to Federal Rule of Civil Procedure 12(b)(6). It is not unfair to allow Defendants to respond to Plaintiff's Fourth Amended Complaint nor is Defendants' Motion dilatory, as Plaintiff has included multiple causes of action in her Fourth Amended Complaint that fail to state claims for relief.

B. Plaintiff Fails To Engage With Defendants' Argument That Her ADEA And Hostile Work Environment Claims Are Untimely.

Plaintiff argues in her Response that her hostile work environment claim and ADEA claim, which were not included in her only timely EEOC charge, are nevertheless timely by making the unsupported assertion that the discrete circumstances of her three charges were linked. Again, Plaintiff's argument misses the mark. Defendants maintain that she cannot pursue her ADEA and hostile work environment claims because she failed to assert either claim in a timely-filed EEOC Charge. As explained in the Motion, Plaintiff filed three EEOC charges, but only her third charge

was filed within 90 days of this lawsuit, and so only the third charge can form the basis for this lawsuit. Because her ADEA and hostile work environment claims were not included in the only timely-filed EEOC Charge, they cannot be asserted in this lawsuit and should be dismissed.

C. Plaintiff Fails To Address Defendants' Legal Arguments Regarding The Sufficiency Of Her State Law Claims.

Plaintiff argues that her state law claims would survive at the pleading stage by simply stating legal conclusions devoid of any legal argument. Plaintiff fails substantively to respond to Defendants' legal arguments. Accordingly, for the reasons set forth in Defendants' Motion, Plaintiff's state law claim should be dismissed.

D. Plaintiff's Title VI Claim Should Be Dismissed.

Plaintiff argues that Curtiss-Wright receives extensive federal funding for Navy contracts and that there should be discovery to establish whether those funds extend to employment practices. However, as a threshold matter, Plaintiff does not plead that Curtiss-Wright receives federal funding for employment or that she is a primary beneficiary of federal funding which, as explained in Defendants' Motion, is a necessary component of a Title VI claim. Plaintiff's bald allegation regarding Curtiss-Wright's Navy funding, in response to a motion to dismiss, does not amount to a pleading. For this reason, and those more thoroughly discussed in Defendants' Motion, Plaintiff has not alleged a viable claim under Title VI.

E. Conclusion.

For the reasons set forth above and in Defendants' Motion, Defendants respectfully request that the Court dismiss with prejudice the following claims alleged in Plaintiff's Fourth Amended Complaint:

- Third Cause of Action for Age Discrimination in Violation of the Age Discrimination in Employment Act;

- Fourth Cause of Action for Hostile Work Environment in Violation of Title VII and the ADEA;
- Sixth Cause of Action for Slander Against Stephanie Lanier and Shane Sablotsky;
- Seventh Cause of Action for Tortious Interference With a Contract Against Stephanie Lanier and Shane Sablotsky;
- Ninth Cause of Action for Title VI Violation; and
- Thirteenth Cause of Action for Breach of Contract.

Defendants also request that the Court dismiss portions of Plaintiff's First Cause of Action for Race Discrimination under Title VII; portions of her Second Cause of Action for Sex Discrimination under Title VII; and portions of her Fifth Cause of Action for retaliation under Title VII, to the extent those claims rely on allegations from two earlier EEOC charges for which she failed to timely file suit.

Respectfully submitted this 18th day of September, 2025

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORPORATION d/b/a
Curtiss-Wright Steam and Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

CERTIFICATE OF SERVICE

The undersigned certifies that on September 18, 2025, a copy of the foregoing **DEFENDANTS' REPLY IN SUPPORT OF DEFENDANTS' PARTIAL MOTION TO DISMISS** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples